

An Act

ENROLLED SENATE
BILL NO. 2011

By: Stanley and Jett of the
Senate

and

Kerbs of the House

An Act relating to assault and battery; amending Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), which relates to Class B5 offenses; conforming reference to certain offense; amending Section 11, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20K), which relates to Class B6 offenses; conforming reference to certain offense; amending 21 O.S. 2021, Section 650.2, as amended by Section 153, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650.2), which relates to assault and battery upon Department of Corrections, Department of Human Services, or Office of Juvenile Affairs employee or contractor; modifying scope of certain offenses; updating statutory language and references; and providing an effective date.

SUBJECT: Assault and battery

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), is amended to read as follows:

Section 20J. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class B5 shall include the following criminal offenses:

1. Second or subsequent conviction for assault and battery against a current or former intimate partner or a family or household member, as provided for in subsection C of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

2. Second or subsequent conviction for domestic abuse committed in the presence of a child, as provided for in subsection G of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3. Assault and battery by strangulation or attempted strangulation against an intimate partner or a family or household member, as provided for in subsection J of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Aggravated assault and battery, as provided for in Section 646 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. Battery or assault and battery upon a police officer, sheriff, deputy sheriff, highway patrolman, corrections personnel, or other state peace officer, as provided for in subsection B of Section 649 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Striking or mistreating a police dog or police horse during the commission of a misdemeanor or felony, as provided for in subsection D of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Disfiguring, disabling, or killing a police dog or police horse during the commission of a misdemeanor or felony, as provided for in subsection C of Section 649.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8. Battery or assault and battery resulting in bodily injury to any employee or contracted employee of the Office of Juvenile Affairs ~~or~~, residential facility, or county detention center as provided for in subsection E of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9. Assault with intent to kill, as provided for in Section 653 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10. Assault with intent to commit any felony, as provided for in Section 681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11. Manslaughter in the second degree, as provided for in Section 716 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12. Owning a mischievous animal that kills a human being, as provided for in Section 717 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13. Causing, aiding, abetting, or encouraging a minor to commit or participate in committing a felony offense, as provided for in subsection C of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14. Causing, aiding, abetting, encouraging, soliciting, or recruiting a minor to participate, join, or associate with any criminal street gang, as provided for in subsection D of Section 856 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15. Committing a gang-related offense as a condition of membership in a criminal street gang, as provided for in Section 856.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16. Stalking, as provided for in subsection B of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17. Second or subsequent conviction of stalking or committing the act of stalking within ten (10) years of the completion of sentence for a prior conviction of stalking, as provided for in subsection C of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18. Intentionally or recklessly spreading an infectious disease, as provided for in Section 1192.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19. Entering the premises of another while masked or disguised with the intent to inflict bodily injury or injury to property, as provided for in Section 1302 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20. Assault with a dangerous weapon while masked or in disguise, as provided for in Section 1303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21. Unlawful assembly for the purpose of engaging in a riot, as provided for in Section 1320.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22. Acts of cruelty to animals, as provided for in Section 1685 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23. Instigating or encouraging any cockfight, as provided for in Section 1692.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

24. Keeping a pit or other place or knowingly providing equipment or facilities for cockfighting, as provided for in Section 1692.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

25. Servicing or facilitating a cockfight, as provided for in Section 1692.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

26. Owning, possessing, keeping, or training any bird for cockfighting, as provided for in Section 1692.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

27. Instigating or encouraging any fight between dogs, as provided for in Section 1694 of ~~Title 21 of the Oklahoma Statutes~~ this title;

28. Keeping a house, pit, or other place, or providing any equipment or facilities to be used for any fight between dogs, as provided for in Section 1695 of ~~Title 21 of the Oklahoma Statutes~~ this title;

29. Acting or performing any service in the furtherance of or facilitating any dogfight, as provided for in Section 1696 of ~~Title 21 of the Oklahoma Statutes~~ this title;

30. Owning, possessing, keeping, or training any dog with intent to have such dog fight another dog, as provided for in Section 1697 of ~~Title 21 of the Oklahoma Statutes~~ this title;

31. Failing to stop for an accident resulting in a nonfatal injury to another person, as provided for in Section 10-102 of Title 47 of the Oklahoma Statutes;

32. Personal injury accident while driving or operating a motor vehicle under the influence of alcohol or other intoxicating substance while having a previous conviction for driving or operating a motor vehicle while under the influence of alcohol or other intoxicating substance, as provided for in paragraph 2 of subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

33. Failure to register as a sex offender, as provided for in Section 583 of Title 57 of the Oklahoma Statutes;

34. Furnishing false or misleading information in the registration required by the Sex Offenders Registration Act, as provided for in Section 586 of Title 57 of the Oklahoma Statutes;

35. Failure to comply with the Sex Offenders Registration Act, as provided for in subsection A of Section 587 of Title 57 of the Oklahoma Statutes;

36. Failure to comply with established guidelines of ~~global-positioning-system~~ Global Positioning System (GPS) monitoring pursuant to the provisions of the Sex Offenders Registration Act, as provided for in subsection B of Section 587 of Title 57 of the Oklahoma Statutes;

37. Temporarily or permanently residing within a two-thousand-foot radius of a public or private school site or other listed places by a person required to register pursuant to the Sex Offenders Registration Act, as provided for in subsection A of Section 590 of Title 57 of the Oklahoma Statutes;

38. Residing with a minor child after being convicted of an offense that involved a minor child by a person required to register pursuant to the Sex Offenders Registration Act, as provided for in subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

39. Two or more sex offenders residing together in a dwelling during the term of registration as a sex offender, as provided for

in subsection A of Section 590.1 of Title 57 of the Oklahoma Statutes; and

40. Establishing, leasing, operating, or owning any structure where persons required to register pursuant to the Sex Offenders Registration Act are allowed to reside, as provided for in subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.

B. Any person convicted of a Class B5 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 2. AMENDATORY Section 11, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20K), is amended to read as follows:

Section 20K. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class B6 shall include the following criminal offenses:

1. Striking, tormenting, mistreating, or administering a nonpoisonous desensitizing substance to a police dog or police horse, as provided for in subsection A of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

2. Interfering with the lawful performance of a police dog or police horse, as provided for in subsection B of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3. Harming, torturing, injuring, disabling, or otherwise mistreating or killing a service animal during the commission of a misdemeanor or felony offense, as provided for in subsection D of Section 649.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4. Assault, battery, or assault and battery upon a Department of Corrections employee by a person in the custody of the Department of Corrections, as provided for in subsection A of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5. Assault, battery, or assault and battery upon an employee of a private prison contractor by a person incarcerated in an institution operated by a private prison contractor, as provided for

in subsection B of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Aggravated assault and battery upon a Department of Human Services employee or contractor, as provided for in subsection C of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Assault, battery, or assault and battery upon an employee of the Office of Juvenile Affairs or contracted employee of a county detention facility pursuant to a contract with the Office of Juvenile Affairs by a person in the custody of the Office of Juvenile Affairs, as provided for in subsection D of Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8. Assault, battery, or assault and battery upon a medical care provider, as provided for in Section 650.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9. Assault, battery, or assault and battery upon an officer of the court, witness, or juror, as provided for in subsection B of Section 650.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10. Aggravated assault and battery upon a school employee, as provided for in subsection C of Section 650.7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11. Assault, battery, or assault and battery upon an employee of a facility maintained by the Office of Juvenile Affairs, a facility maintained by a private contractor, juvenile detention center, or juvenile bureau, as provided for in Section 650.8 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12. Throwing, transferring, or placing any feces, urine, semen, saliva, or blood upon an employee of the state, a county, or a city, as provided for in Section 650.9 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13. Medical battery, as provided for in Section 650.11 of ~~Title 21 of the Oklahoma Statutes~~ this title; and

14. Child endangerment, as provided for in Section 852.1 of ~~Title 21 of the Oklahoma Statutes~~ this title.

B. Any person convicted of a Class B6 criminal offense set forth in this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes.

SECTION 3. AMENDATORY 21 O.S. 2021, Section 650.2, as amended by Section 153, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650.2), is amended to read as follows:

Section 650.2. A. Every person in the custody of the ~~Oklahoma~~ Department of Corrections who, without justifiable or excusable cause, knowingly commits any assault, battery, or assault and battery upon the person of a Department of Corrections employee while ~~said~~ the employee is in the performance of his or her duties shall, upon conviction ~~thereof~~, be guilty of a Class B6 felony offense.

B. Every person incarcerated in an institution operated by a private prison contractor, pursuant to Section 561, 563.1, or 563.2 of Title 57 of the Oklahoma Statutes, who, without justifiable or excusable cause, knowingly commits any assault, battery, or assault and battery upon the person of an employee of the contractor while ~~said~~ the employee is in the performance of his or her duties shall, upon conviction ~~thereof~~, be guilty of a Class B6 felony offense.

C. Every person in the custody of the Department of Human Services who, without justifiable or excusable cause, knowingly commits any aggravated assault and battery upon the person of a Department of Human Services employee, or a person contracting with the Department to provide services, while the employee or contractor is in the performance of his or her duties shall, upon conviction ~~thereof~~, be guilty of a Class B6 felony offense.

D. Every person in the custody of the Office of Juvenile Affairs who, without justifiable or excusable cause, knowingly commits any assault, battery, or assault and battery upon the person of an employee of the Office of Juvenile Affairs or a contracted employee of a county detention facility pursuant to a contract with the Office of Juvenile Affairs while ~~said~~ the employee or contracted employee is in the performance of his or her duties shall, upon conviction ~~thereof~~, be guilty of a Class B6 felony offense.

E. Every person in the custody of the Office of Juvenile Affairs who, without justifiable or excusable cause, knowingly commits any battery or assault and battery resulting in bodily injury to any employee of the Office of Juvenile Affairs ~~or~~, employee of any residential facility, or contracted employee of a county detention center pursuant to a contract with the Office of Juvenile Affairs while ~~said~~ the employee or contracted employee is in the performance of his or her duties of employment shall, upon conviction ~~thereof~~, be guilty of a Class B5 felony offense. The fine for a violation of this subsection shall not be less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), which may be imposed whether or not a period of incarceration is imposed.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 24th day of February, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____